



File No.: EXP202309152

RESOLUTION FOR ARCHIVING OF PROCEEDINGS

From the proceedings conducted by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 03/11/2021, the AEPD received a communication from the National Commission on Markets and Competition (CNMC) that attached the "Agreement by which the actions carried out in relation to possible fraudulent uses of the Supply Points Information System (SIPS)" approved by the Regulatory Supervision Chamber of the CNMC. The CNMC conveys the results of the actions taken in its supervision of the retail electricity and natural gas market concerning possible fraudulent uses of the SIPS by marketing agents and other companies that are not agents of the electricity and gas systems, a total of 18 companies. The CNMC, while analyzing its possible response to the detected cases so that this situation can be corrected, forwards them to the Agency for its information and so that, in the exercise of its functions, it can carry out the actions it deems appropriate from the perspective of data protection regulations, to the extent that supply points owned by individuals could be affected.

The CNMC has detected 4 distinct cases of possible fraud:

- CASE ONE.- Indications of marketing or use of SIPS data through advertisements on websites or information sent to the CNMC, in 7 entities, mostly non-energy marketers.
- CASE TWO.- Among the agents who download the complete SIPS electricity database monthly, there are 3 marketers that manage few or no supply points.
- CASE THREE.- There are indications of a possible use not in accordance with the purpose of the SIPS in the analysis of the data obtained from individual queries of authorized marketers through API, as they present a very high number of queries, far exceeding the volume of switching operations recorded in a given period of time, and even the number of supply points that are part of their client portfolio. The high number of different IP addresses used by some marketers is also noteworthy. An Excel file accompanying the Annex includes information on the relationship of IP addresses of 7 marketers, with the number of queries made, which, due to its high volume, could indicate possible communication and/or marketing of the information contained in the SIPS, or the use of OAuth credentials for access to the SIPS by third parties.
- CASE FOUR.- It has been discovered that a marketer is using SIPS information in automated web contracting procedures, allowing any user of the tool to know, among other data, partial information of the CUPS associated with a consumer's address along with their contracted power.

On 31 March 2022, the director of the AEPD agreed to initiate an ex officio investigation to gather the necessary elements of judgment to ascertain whether actions contrary to personal data protection regulations have occurred, taking into account the broad scope of the assumptions raised by the CNMC and the need to align it with the capabilities and resources available to the AEPD.

On 05/07/2023, the Director of the AEPD agreed to initiate investigative actions covering the third of the scenarios described by the CNMC, namely, the anomalous activity of marketers in their authorized access to the SIPS, due to the number of queries or multiplicity of originating IP addresses, which could point to the marketing of data or the use of credentials by third parties, focusing on the entity ELECTRICIDAD ELEIA S.L. with CIF B88181441 (hereinafter ELEIA).

SECOND: In light of the facts, during the preliminary proceedings, the Inspection Services of this Agency have become aware of the following facts reflected in the Preliminary Inspection Report: Situation noted by the CNMC

- In a letter dated 28/10/2021, the Regulatory Supervision Chamber of the CNMC forwarded to this Agency possible cases of fraudulent use detected during its supervision of the retail electricity and natural gas market.

In the context of the third of the scenarios described, the CNMC observes, in the analysis of the data obtained from individual queries of marketers in their authorized access to the CNMC web service API,

indications of a possible use not in accordance with the purpose of the SIPS, as a high number of requests and different IP addresses used by some marketers are presented. The CNMC indicates that ELEIA:

This electricity marketer (code (...)) made 252,473 queries from X different IP addresses during the study period (second quarter of 2021), and its switching was (...) supply points. In July 2021, it managed (...) electricity supply points.

Additionally, the CNMC provides an Excel file, CNS_DE_1061_21_anexo, which includes information on the relationship of ELEIA's IP addresses with the number of requests made through the CNMC web service API during the second quarter of 2021.

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2ND QUARTER 2021

IP

Number of requests

(...)

192,866

(...)

27,497

(...)

17,299

(...)

8,675

(...)

5,949

(...)

147

(...)

24

(...)

16

Total

252,473

- On 28/06/2022, within the framework of the investigative actions ***PROCEDURE.1, the CNMC provides this Agency with the official letter, dated 09/03/2022, in which it requests ELEIA to clarify the individual inquiries made during the year 2021, and the written response from ELEIA to the questions raised by the CNMC, dated 29/03/2022.

Below is an excerpt from the information provided:

“For these purposes, you are required to submit the requested documentation, as well as responses to the following questions within ten working days...:

I. Detailed justification of the use of the information that you download monthly from the SIPS of the CNMC regarding your activity as an electricity marketer. In particular, clarify the reasons for the high number of inquiries and the destination of the information downloaded through your inquiries to the SIPS databases.

II. A copy of the code of conduct signed as indicated in Article 7.3 of Royal Decree 1435/2002, as well as the guarantees of confidentiality of the information contained in the downloaded databases. Include a faithful copy of the related document.

III. Confirm or deny whether you share and/or transfer to third parties the information from the SIPS and/or your credentials and access authorization. If affirmative, specify the type of existing relationship and indicate since when these practices have been carried out.

- Response from ELEIA

FIRST. - REGISTRATION IN THE INFORMATION SYSTEM OF SUPPLY POINTS

ELEIA is a company whose corporate purpose includes, among others, the development of electricity marketing activities to the customer or final consumer in accordance with current legislation, a company duly authorized to carry out its activity by the Ministry of Industry, Tourism and Trade.

In the framework of its activity, on July 3, 2019, ELEIA requested the corresponding registration in the Information System of Supply Points (hereinafter, "SIPS") through the established procedure.

The registration request was effectively made by the legal representative of ELEIA, who expressly guaranteed "compliance with the applicable regulations on the protection of personal data regarding the data received and (...) the confidentiality of the information of the data (...), adopting, for this purpose, the necessary measures in the processing processes."

It is verified that the IP appearing in the registration receipt at the CNMC headquarters is (...).

The request was approved by the CNMC on July 4, 2019, thus enabling ELEIA to access the supply point databases and the production environment of SIPS v2.

SECOND. – Detailed justification of the use of the information that you download monthly from the SIPS of the CNMC regarding your activity as an electricity marketer. In particular, clarify the reasons for the high number of inquiries and the destination of the information downloaded through your inquiries to the SIPS databases.

(...)

ELEIA, in the exercise of its activity, has requested access to the supply point databases for:

1. Access and download of rates, consumption, and/or other registered data in order to prepare personalized offers directed both to the company's own clients (for example, for renewal purposes) and to potential clients who request them.
2. For its part, ELEIA also regularly conducts pricing studies of its active client portfolio, analyzing the prices and/or rates offered, the prices and/or rates billed, or the consumption of the supply point in question.

[...]

On the contrary, ELEIA, in exercising its rights as an energy marketing company, and in order to have the most up-to-date data possible contained in the SIPS, currently makes monthly calls to the API of the service provided by the CNMC (identified with IP number (...)) through a certificate from the company's legal representative and a token provided by the Commission itself.

1 Among others, Law 24/2013, of December 26, on the Electricity Sector (hereinafter, Law 24/2013) and Royal Decree 1955/2000, of December 1, which regulates the activities of transportation, distribution, marketing, supply, and authorization procedures for electricity installations (hereinafter, RD 1955/2000).

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As previously noted, ELEIA accesses the new and/or updated files on the XX days of each month at midnight, which correspond to the data from the previous month. [...]

In accordance with the above, all use and/or processing of the information is internal, with technical and organizational measures in place to ensure the confidentiality, integrity, availability, and permanent resilience of the processing systems and services, and to restore availability in the event of a physical or technical incident.

(...)

Regarding the year 2021, where it is indicated that "there have been 20 different IP addresses registered, 380,436 individual queries on consumption, and 202,691 individual queries on electricity supply points," it is indeed true that a greater number of connections were made for downloading the files and querying said database, but always and in any case for the purposes previously described, and without contravening any provision or regulation in this regard.

(...)

In summary, ELEIA maintains strict control over access, has not communicated, provided, or used the

information for any purposes other than those stated herein, and upholds its duty of confidentiality, as well as guarantees that the individuals authorized to process the information commit, expressly and in writing, to respect confidentiality and the duty of secrecy and to comply with the corresponding security measures.

THIRD. – A copy of the code of conduct signed as indicated in Article 7.3 of Royal Decree 1435/2022, as well as the guarantees of confidentiality of the information contained in the downloaded databases. Include a faithful copy of the related document.

ELEIA is a company that is part of the ACS Group and, as such, is expressly adhered to the Code of Conduct and Protocols approved by the governing body of the parent company and applicable to the various divisions, subsidiaries, or joint ventures in which Group companies are involved.

In particular, as stated in the Code of Conduct, "we promote and recognize among our people those behaviors consistent with ethics and compliance with regulations, regardless of their professional category and the Group company in which they operate."

(...)

And they provide:

- As ..., Model of the confidentiality commitment signed by all ELEIA personnel; and
- As ..., User Manual for Data Protection and Information Security, prepared together with our Data Protection Officer (hereinafter, "DPO"), which establishes rules on how to handle information by ELEIA personnel in order to ensure its confidentiality, security, and integrity.

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FOURTH. – Confirm or deny whether you share and/or transfer to third parties the information from the SIPS and/or your credentials and access authorization. If affirmative, specify the type of relationship existing and indicate since when these practices have been carried out.

ELEIA does not share or transfer to third parties the information from the SIPS and/or its credentials and access authorization.

ELEIA, for its part, has signed a Service Provision Contract with AUDINFOR SYSTEM S.L.

(hereinafter, AUDINFOR), one of the services offered being "SIPS Database," which consists of:

- The downloading of SIPS data once a month, its deposit in a query Database accessible from SIGE (management system of ELEIA).

In this way, it avoids invoking the SIPS in a individualized and/or recurrent manner.

- A search tool, in SIGE, at the time of contracting a CUPS code to auto-fill the fields of powers and annual consumption against that copy of the SIPS.
- The consultation of the data of a CUPS to be able to offer a personalized offer based on its power, rate, and consumption against that copy of the SIPS.
- The consultation of the data of a CUPS to be able to offer a personalized offer based on its power, rate, and consumption against that copy of the SIPS.

(...)

Regarding the IP addresses identified by the CNMC

- In relation to the IP addresses of ELEIA identified by the CNMC with the number of queries made during the second quarter of 2021, steps are taken to identify, within the framework of the investigation actions, the Internet service provider through the website of the Regional Internet Coordination Center for Europe, Diligence IPs, obtaining the following results:

IP

Internet Service Provider

(...)

(...)

(...)

(...)

(...)
(...)
(...)
(...)
(...)
(...)
(...)
(...)
(...)

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- On the dates 9 and 29/02/2024, (...) is requested to provide the identifying data and address of the holder of the assignment of the IP addresses that correspond to them on the dates provided by the CNMC.

On the dates 20/02/2024 and 19/03/2024, the response is received at the electronic headquarters of the AEPD. The results are as follows:

IP

Date

IP Type

(...)

19-04-2021

Dynamic

(...)

23-04-2021

Dynamic

(...)

30-04-2021

Dynamic

Regarding the identification data of the IPs (...), (...) and (...) on the indicated dates, this company has verified that it is not possible to provide this data since it is not available due to the computer system having a limited storage time of twelve months according to the Data Retention Law 25/2007.

- On the dates 14 and 26/02/2024 and 12/04/2024, (...) is requested to provide the identifying data of the holder of the assignment of the IP addresses that correspond to them on the dates provided by the CNMC.

On the dates 20/02/2024, 18/03/2024, and 22/04/2024, their responses are received at the electronic headquarters of the AEPD. The results are as follows:

IP

Date

Type

(...)

Current

Static

(...)

2, 7, 8, 10, 28, 29, and 30 of June 2021

Dynamic

(...)

12, 15, 16, 19, and 26 of April 2021

Dynamic

5 of May 2021

(...)

14, 15, 17, 18, and 25 of 2021

Dynamic

- The assignment of IP addresses is dynamic (...)
- Regarding this type of IP addresses (dynamic), the requested information is stored for a period of one year in application of Law 25/2007 of October 18, on the retention of data related to electronic communications and public communications networks, so the mentioned information is not available, as it exceeds the mentioned period.
- Currently (as of March 5, 2024), the IP address (...) is assigned to COBRA INSTALACIONES Y SERVICIOS S.A., as reflected in the Regional Internet Registry for Europe, the Middle East, and Central Asia, known by its acronym RIPE, which is publicly accessible. However, it cannot be determined from when this IP address has been assigned to that client.
- (...)

Regarding ELEIA's access to the CNMC web service

In the context of the investigation proceedings, on 01/03/2024, ELEIA is requested to provide information regarding access to the API of the CNMC web service during the year 2021.

On 03/04/2024, ELEIA is requested to expand the information provided. The most relevant aspects of the information provided are as follows:

- The license granted by the CNMC to ELEIA was used during 2021 and, in particular, during the second quarter by a single person from ELEIA, namely, the person with the status of assigned user in the Energy Management department to carry out the price calculation process. This person was part of ELEIA's staff and had a corporate portable computer to perform their functions from 07/01/2020 to 15/08/2021.
- ELEIA has a fixed outgoing IP address to the Internet identified by the number (...) corresponding to the connection that (...) provides to the Cobra Group. Regarding the other IP addresses identified by the CNMC in the Excel CNS_DE_1061_21 annex, they do not identify them as their own or related to ELEIA or the Cobra Group.
- ELEIA has a service provision contract with AUDINFOR SYSTEM S.L. (hereinafter AUDINFOR), one of the services offered being the "SIPS Database," which consists of:
- Downloading the SIPS data once a month for deposit in a query database accessible from SIGE (ELEIA's Management System).

AUDINFOR accesses the SIPS as a data processor using the unique credentials provided by the CNMC to ELEIA.

ELEIA emphasizes that the CNMC provides unique credentials for "authorized marketing entities" not by user. To explain how it complies with its confidentiality obligations, it refers to the document "Response from ELEIA," the content of which has been partially reproduced in this Report.

- Searcher, in SIGE, at the time of contracting a CUPS code to auto-complete the fields of powers and annual consumption against that copy of the SIPS.
- Querying the data of a CUPS to offer a personalized offer based on its power, rate, and consumption against that copy of the SIPS.
- In 2021, ELEIA carried out the price calculation tasks by evaluating each of the Universal Point Codes.

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Supply (CUPS) of the Company. To do this, the necessary consumption data is consulted in the SIPS and multiplied by the price, thus obtaining data for energy management. This operation implies that for each CUPS of ELEIA there is a call/query to the SIPS. Currently, the existing process for price calculation is carried out by downloading, in a secure ELEIA environment, once a month, the database corresponding to the Company's CUPS from the SIPS when this information is published in said system so that updated information is used at all times.

Regarding the contract signed with AUDINFOR

The contract, dated 27/08/2019 and with a duration of 24 months, aims to provide, by AUDINFOR, the service related to the energy marketing management software SIGE, and the following clauses 4, 5, and 6 are reproduced:

4. The data located in the databases necessary for the proper functioning of the platforms used are the property of the CLIENT and processed by the PROVIDER solely based on the terms of this contract and its annexes. Such data is protected according to current regulations: REGULATION (EU) 2016/679 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of April 27, 2016 (General Data Protection Regulation - GDPR), and the national laws and regulations that develop it. General Data Protection Regulation (GDPR) and following the information security protocols set by the recognized standard ISO/IEC 27001:2013 on Information Security, in which AUDINFOR is certified. In order to comply with legal requirements according to the GDPR, and the commitment that the PROVIDER undertakes as a data processor on behalf of the CLIENT, the GDPR Annex of clauses for the processing of personal data is established.

5. As stated in the previous clause, the data located in the databases are the property of the CLIENT and in the event of termination of the contract for any reason, the PROVIDER will immediately deliver all information to the CLIENT in xls format.

6. The PROVIDER expressly guarantees that it will comply with the applicable regulations regarding the protection of personal data concerning the data processed and that it will maintain at all times the confidentiality, integrity, and availability of the same in the exercise of its functions as Data Processor, adopting, for this purpose, the necessary and appropriate measures in the processing processes, which are exclusively its responsibility. The PROVIDER commits to train and inform the personnel under its responsibility who use the information about its confidential nature and its compliance with personal data protection regulations, as well as to immediately implement the necessary technical and organizational means to ensure respect for such conditions (See clauses in GDPR Annex).

In the Annex of the contract ANNEX GDPR/LOPDGDD. ASSIGNMENT OF PERSONAL DATA PROCESSING, the clauses are included that enable AUDINFOR, as the data processor, to process on behalf of ELEIA, the data necessary to provide the service of software implementation and maintenance SIGE...

(...)

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each control authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Case Analysis

1. Article 6 of the GDPR, under the heading "Lawfulness of processing," details in its paragraph 1 the circumstances under which data processing is considered lawful:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

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The provisions in paragraph f) of the first paragraph shall not apply to the processing carried out by public authorities in the exercise of their functions.”

Also, the GDPR in its Article 5 establishes the principles that must govern the processing of personal data and, in its section 1 states that:

“1. Personal data shall be:

a) processed lawfully, fairly, and transparently in relation to the data subject (<>).
(...)”

And in its section 2, it establishes that:

“2. The data controller shall be responsible for compliance with the provisions of section 1 and shall be able to demonstrate it (<>).”

Therefore, all processing of personal data must respect the principles that govern it, as listed in Article 5.1 of the GDPR, including the principle of lawfulness, which is further developed in Article 6.1 of the GDPR.

From what is stated in this last provision, it follows that the processing of data requires the existence of a legal basis that legitimizes it and, in accordance with it, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, in particular, when it is necessary for the performance of a contract to which the data subject is a party or for the application, at the request of the data subject, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the data subject which require the protection of such data. Processing is also considered lawful when it is necessary for compliance with a legal obligation to which the data controller is subject, to protect vital interests of the data subject or of another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

2. Regarding energy marketers, both access to and processing of personal data contained in the SIPS find their legitimacy in paragraph e) of Article 6.1 of the GDPR:

“(…)”

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller”

(...)”

According to Article 6.1.f) of Law 24/2013, of December 26, on the Electricity Sector:

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“f) Marketers, which are those commercial companies or consumer and user cooperatives that, accessing the transport or distribution networks, acquire energy for sale to consumers, to other subjects of the system, or to carry out international exchange operations under the terms established in this law.

The procedure and requirements to be a reference marketer will be established by regulation.”

Therefore, for the exercise of marketing activity, interested parties must communicate the initiation of activity specifying the territorial scope in which the activity will be developed, to the General Directorate of Energy Policy and Mines of the Ministry of Energy, Tourism, and Digital Agenda.

This communication must be submitted accompanied by a responsible declaration regarding compliance with the requirements for the exercise of the activity. The General Directorate of Energy Policy and Mines forwards the communication made by the interested party to the CNMC, which publishes it on its website and maintains an updated list at least monthly, which includes all marketers. In the event that a marketer fails to comply with any of the requirements demanded for the exercise of its activity, the Ministry for Ecological Transition and the Demographic Challenge may initiate a disqualification procedure that ends with the extinction of the authorization to act as a marketer, which is communicated to the CNMC.

Likewise, the obligations that marketers must comply with regarding the confidentiality of information related to supply points are indicated. According to current regulations, the data of the SIPS are confidential.

For consultation or download of the SIPS information, marketers must first request registration with the CNMC in the management system of the electricity and gas supply point databases, through the procedure established for this purpose. This request must be analyzed and validated by the CNMC before access is granted.

Access to the SIPS information from the CNMC is only permitted to energy marketers that are registered in the list of marketers available on the CNMC website through an application programming interface (API).

3. Regarding the SIPS, the AEPD has stated about the nature of the data from the electrical SIPS indicating that “the Supply Point Information System incorporates personal data, since it is possible to identify the consumer to whom the information refers from the Supply Point Code, thus linking all the content of the system with that consumer.”

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The SIPS is a technical, consumption, and commercial database of each of the supply points connected to each electricity or natural gas distributor.

Both the structure and access to the SIPS are regulated in Article 7 of Royal Decree 1435/2002, of December 27, for the electricity sector.

The marketers, and other parties that make use of the information contained in the databases of supply points of the distribution companies, in accordance with the provisions of Article 7 of Royal Decree 1435/2002 and Article 46.1.k) of Law 24/2013, of December 26, on the Electricity Sector, must subscribe to a code of conduct and ensure the confidentiality of the information contained therein.

4. On 03/11/2021, the CNMC forwarded to the AEPD the document "Agreement to refer to the Spanish Agency for Data Protection the actions taken regarding possible fraudulent uses of the SIPS," approved by the Regulatory Supervision Chamber of the CNMC, which suggested a possible fraudulent use of the Information System of Supply Points (SIPS).

The CNMC indicated that, through the analysis of the recorded access data and the receipt of alerts from marketers and users, a series of scenarios had been identified that suggested possible fraudulent uses of the SIPS that could impact the right to personal data protection. In summary, the CNMC referred to four possible scenarios as follows:

Once the information provided was analyzed, the opportunity to conduct investigations was considered to gather the necessary elements of judgment to determine whether actions contrary to the regulations on personal data protection had occurred, assuming and taking into account the capabilities and resources of the AEPD.

In the case examined, the investigations focused on the third of the described scenarios, namely, authorized marketers presenting a very high number of inquiries, significantly exceeding the volume of

switching operations recorded in a given period of time, even exceeding the number of supply points that are part of their client portfolio. Likewise, the high number of different IP addresses used, which, due to their high volume of accesses, could indicate possible communication and/or marketing of the information contained in the SIPS, or the use of access credentials to the SIPS by third parties. The entity under investigation is an electricity marketer with code (...) accessing the SIPS through the CNMC API, which exhibited signs of fraudulent use, inconsistent with the purpose attributed to the SIPS due to the high number of inquiries and IP addresses used in accessing the database.

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As noted, the entity requested registration in the SIPS on 03/07/2019 in accordance with the established procedures, and the IP listed in the CNMC registry matches one of those included in the information transmitted by the aforementioned body.

Thus, the information provided by the CNMC includes details of the queries made during the second quarter of 2021, through each of the 8 IP addresses from which they were carried out. It states that it does not share or transfer to third parties the information contained in the SIPS nor its credentials and access authorization; regarding the higher volume of queries made in the second quarter of 2021, it has stated that a greater number of connections were made for downloading files and consulting said database, but for the described purposes and without contravening any provision or regulation in this regard; it maintains a service contract with the company AUDINFOR, one of the services offered being “SIPS Database,” which consists of downloading the SIPS data once a month, updating the data and thus avoiding invoking the SIPS in a individualized and/or recurring manner.

Regarding the IP addresses identified by the CNMC during the second quarter of 2021, steps were taken to identify the Internet service providers, which are (...) and (...); the first responded that it was not possible to provide data due to the computer system having a limited storage time of twelve months, and the second responded in similar terms except regarding one of the IPs, which is the one listed in the CNMC registry, currently assigned to Grupo Cobra without being able to determine the date from which it has been assigned to that client.

In response to the acting inspector, the entity has indicated that it has a fixed outgoing IP address to the Internet identified with which (...) assigns to Grupo Cobra, and regarding the rest of the IP addresses identified by the CNMC, it does not identify them as its own or related to it.

Well, from the documentation in the file and the statements made by the CNMV, by the investigated entity in response to the CNMC's requests, and by the acting inspector, there is no evidence or proof of the existence of conduct that affects or violates the regulations on the protection of personal data. In this regard, it is worth recalling that, as repeatedly stated by the Constitutional Court, among others in SSTC 120/1994 and 76/1990, the fundamental right to the presumption of innocence has full validity within the framework of Administrative Sanctioning Law. Thus, in STC 76/1990, the High Court states that “... the presumption of innocence applies without exceptions in the sanctioning legal system and must be respected in the imposition of any sanctions, whether criminal, administrative in general, or tax in particular.”

The Constitutional Court also states in Judgment 76/1990 that the right to the presumption of innocence entails “that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the outcome of the evidence...

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practiced, freely assessed by the sanctioning body, must translate into a pronouncement of acquittal.”

On the other hand, the Judgment of the Constitutional Court of 20/02/1989 states that “Our doctrine and criminal jurisprudence have maintained that, although both can be considered as manifestations of a generic favor rei, there is a substantial difference between the right to the presumption of innocence, which exerts its effectiveness when there is an absolute lack of evidence or when the evidence presented does not meet procedural guarantees, and the jurisprudential principle in dubio pro reo, which belongs to the moment of evaluation or appreciation of evidence, and which must be judged when that indispensable evidentiary activity occurs, there is a rational doubt about the actual concurrence of the objective and subjective elements that make up the criminal type in question.” Focusing on the facts concerning the investigation carried out and after the examination of the documents provided, it is verified that there is no evidence indicating that the investigated entity has committed an infringement of the GDPR, facts arising from a preliminary analysis prompted by the high number of accesses and inquiries, disproportionate and illogical through the CNMC API, far exceeding the volume of normal switching operations for a specific period of time or the number of CUPS that are part of its client portfolio, and exacerbated by the high number of IP addresses used to carry out the accesses, indicative of a possible or presumed fraudulent commercialization of the information obtained from the SIPS.

However, the aforementioned circumstances do not constitute or evidence the existence of proof of the possible commission by the investigated entity of the violation of the GDPR. This is because, within the framework of the preliminary investigative actions, the Internet service providers were identified, which included the IP addresses through which accesses to the SIPS database were made via the API, not allowing to deduce that, with the exception of a single one that appeared in the CNMC registry as belonging to the marketer, they also belonged to it, so that the result did not have the evidentiary significance required to prove a fraudulent act by the marketer.

Therefore, no evidentiary elements have been provided or incorporated into the file that allow for the reliable establishment that the claimed party violated the regulations on data protection. Given these circumstances, in application of the principle of the presumption of innocence, which prevents the imposition of a sanction in the case of a lack of evidence regarding a specific and determining fact, it is not appropriate to activate a sanctioning procedure, as no violation of the GDPR has been substantiated.

III

Conclusion

Based on the points noted in the previous foundation, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

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All this without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing according to what has been stated,

By the Director of the Spanish Agency for Data Protection, IT IS
AGREED:

FIRST: TO PROCEED TO THE FILING of the present actions.

SECOND: TO NOTIFY this resolution to ELECTRICIDAD ELEIA, S.L. with CIF B88181441.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties. Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection

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